

1.

CASE #	CASE NAME	HEARING NAME
CVRI2202721	AMERICAN RENEWABLE ENERGY, INC. VS TONOYAN	MOTION TO VACATE DISMISSAL

Tentative Ruling:

On December 4, 2024, the order of dismissal was entered, and notice was given. The motion is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304960	COMMERCIAL CLEANING SOLUTIONS, INC. VS SALEEN AUTOMOTIVE	MOTION TO ENFORCE SETTLEMENT AGREEMENT CCP 664.6

Tentative Ruling:

The unopposed motion is granted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2407207	LICEA VS WALMART, INC.	MOTION FOR ORDER TO DEEM MATTERS ADMITTED RFA SET ONE NOS. 1–16 MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES AND REQUESTS FOR PRODUCTION OF DOCUMENTS, AND FOR MONETARY SANCTIONS

Tentative Ruling:

Plaintiff's efforts to meet and confer were reasonable and in good faith.

Timeliness

The motion for order to compel further responses must be served within 45 days of service of verified responses, plus the additional time if not personally served. (Code Civ. Proc., §§ 2030.300, subd. (c), 1010.6, subd. (a)(4); 1013.) If the responses are objections only, they are treated as verified responses with respect to the 45-day limit, but if the responses are a combination of both unverified responses and objections then

the 45-day period does not start as the statute setting forth the time limit requires verification of hybrid responses. (*Gold & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 131, 136.)

Here, Defendant's unverified responses and supplemental responses are not objections only. Thus, the motion is timely.

RFAs

Because Defendant provided verifications, Plaintiff is no longer asking the Court to deem matters admitted but reserves his right to compel further responses.

SROG Nos. 2, 4(v) & (vii), 5(ii)-(iv), 13, 14, 15, 20 and 21; RFP Nos. 1, 5, 7, 8, 11, and 12

In reply, Plaintiff confirms Defendant served verifications on May 29, 2026, but none of the promised supplemental responses. Defendant states it will supplement responses.

SROG Nos. 8, 9, 10, 17, 18, and 22

Nos. 8, 9, and 10 requests details as to all communications that occurred by Defendant and Plaintiff on October 2, 2024. Defendant objects based on vague and ambiguous, overbroad, compound, and unduly burdensome. Defendant responded that to its knowledge no employee or associate made the statements Plaintiff identified on October 2, 2024. In its opposition, Defendant argues the SROGs do not ask whether Defendant made such inquiry to the employees that Defendant identified as working on October 2, 2024. However, this argument is unavailing. Code of Civil Procedure section 2030.220, subdivision (c), requires that "[i]f the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, exception where the information is equally available to the propounding party." (Code Civ. Proc., § 2030.220, subd. (c), emphasis added.) Defendant did not provide a Code-compliant response especially in light of the fact Defendant identifies by name all employees who worked on October 2, 2024. (Defense Answer SROG No. 22.)

Nos. 17 requests Defendant to state whether it trained the employee(s) who interacted with Plaintiff on October 2, 2024. Defendant's response is not Code-compliant under the aforementioned Code of Civil Procedure section 2030.220, subdivision (c) because Defendant states it is unable to identify any employee who interacted with Plaintiff on October 2, 2024 despite providing a list of names of employees who worked on that same day.

Nos. 18 and 22 relate to any prior complaints or civil actions and personnel/disciplinary records alleging discrimination against visually impaired customers. Defendant does not address No. 22. Plaintiff clarified that it is deficient as to November 4, 2024. However, as to No. 18, Defendant objects as to breadth because it is an unlimited timeframe. In

reply, Plaintiff narrows the scope to the five years preceding the October 2, 2024 incident.

RFP Nos. 2 & 3

No. 2 seeks documents relating to Plaintiff's incident on October 2, 2024. Defendant objected that Plaintiff visited the store on multiple occasions creating undue burden. This objection is unavailing given the request specifically requests documents relating to Plaintiff's October 2, 2024 visit. Defendant's supplemental response to SROG No. 21 states there was surveillance video footage but was not retained after 30 days. Thus, Defendant's response to RFP No. 2 is incomplete because it does not specifically address whether photographs and reports once existed but were not retained.

No. 3 requests all disciplinary records and personnel files who interacted with Plaintiff on October 2, 2024. Defendant replied it had "no information or knowledge at this time as it has not been able to identify any associates who interacted with Plaintiff on" October 2, 2024. Because this request is related to SROG Nos. 8, 9, and 10 and Defendant's answer to SROG Nos. 8-10 were not Code-Compliant, Defendant's response to RFP No. 3. is also defective.

The Court grants the motion as to SROG Nos. 2, 4(v) & (vii), 5(ii)-(iv), 13, 14, 15, 20 and 21; RFP Nos. 1, 5, 7, 8, 11, and 12; and SROG Nos. 8, 9, 10, 17, 18, and 22. As to SROG No. 18, it is granted but limited to the five (5) years preceding the October 2, 2024 incident. Defendant is ordered to serve verified, code-compliant further responses within twenty (20) days.

Sanctions

Plaintiff made reasonable efforts to meet and confer with Defendant and granted multiple extensions. Based on Defendant's response to SROG Nos. 8, 9, and 10 and the history of meet and confer efforts, it is appropriate to impose sanctions.

Here, Plaintiff's counsel bills at a rate of \$505 per hour. He expended 28.1 hours of work on the motion to deem RFAs admitted, seeking \$14,250.50 in monetary sanctions. He expended 108.8 hours of work on the motion to compel further responses, seeking \$55,004.00. Counsel's hourly rate and expended time appear excessive given these are basic discovery motions. **As such, the Court imposes sanctions against Defendant and its former and current attorneys in the reduced amount of \$1,600 each motion (\$400 x 4 hours of work), to be paid, jointly and severally, within thirty (30) days of this order.**

Moving party is ordered to submit a proposed order consistent with the Court's ruling by no later than June 9, 2026, by 5:00 p.m.